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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:05-cv-01917-RPM

Adept Computer Solutions, Inc. v. Zoll Data Systems
Assigned to: Judge Richard P. Matsch
Cause: 17:501 Copyright Infringement

Date Filed: 10/03/2005
Date Terminated: 02/14/2008
Jury Demand: Plaintiff
Nature of Suit: 820 Copyright
Jurisdiction: Federal Question

Plaintiff

Adept Computer Solutions, Inc.
a California corporation

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V.

Defendant

Zoll Data Systems

*a Delaware corporation, a California
corporation and John Does 1-20*

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Date Filed	#	Docket Text
10/03/2005	1	COMPLAINT and jury demand against Zoll Data Systems (Filing fee \$ 250, Receipt Number 263261) Summons Issued, filed by Adept Computer Solutions, Inc. (Attachments: # 1 Civil Cover Sheet # 2 Receipt)(bpm,) (Entered: 10/04/2005)
10/07/2005	2	ORDER REFERRING CASE to Magistrate Judge Michael J. Watanabe by Judge Daniel. (erv,) (Entered: 10/07/2005)
10/07/2005	3	CORPORATE DISCLOSURE STATEMENT <i>Pursuant to Fed. R Civ. P. 7.1(a) and D.C.COLO.LCovR 7.4 A</i> by Plaintiff Adept Computer Solutions, Inc.. (McNab, Stewart) (Entered: 10/07/2005)
10/20/2005	4	ORDER, Set Hearings: Scheduling Conference set for 11/18/2005 09:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Signed by Magistrate Judge Michael J. Watanabe on 10/20/05. (erv,) (Entered: 10/21/2005)
10/28/2005	5	STIPULATION for Extension of Time to <i>Respond to Complaint and Jury Demand Pursuant to D.C.COLO.L.Civ.R. 6.1(A)</i> by Plaintiff Adept Computer Solutions, Inc., Defendant Zoll Data Systems. (Fischer, Mark) (Entered: 10/28/2005)
10/31/2005	6	ORDER GRANTING 5 Stipulation for Extension of Time to Respond to Complaint and Jury Demand up to and incl 11/19/05 filed by Adept Computer Solutions, Inc., Zoll Data Systems, by Magistrate Judge Michael J. Watanabe on 10/31/05. (erv,) (Entered: 11/01/2005)
11/02/2005	7	Unopposed MOTION to Continue <i>Scheduling/Planning Conference</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Magnuson, Elizabeth) (Entered: 11/02/2005)
11/03/2005	8	Minute ORDER granting 7 Dfts Unopposed Motion to Continue Scheduling/Planning conf set for 11/18/05 and Resetting it for 12/15/05 at 3:00 pm, by Magistrate Judge Michael J. Watanabe on 11/03/05. (erv,) (Entered: 11/03/2005)
11/14/2005	9	NOTICE of Entry of Appearance by Matt Stump on behalf of Zoll Data Systems (Stump, Matt) (Entered: 11/14/2005)
11/21/2005	10	Unopposed MOTION For Extension of Time to <i>Respond to Complaint and Jury Demand</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only)) (Magnuson, Elizabeth) (Entered: 11/21/2005)
11/22/2005	11	MEMORANDUM referring to Magistrate Judge Watanabe : 10 Unopposed MOTION For Extension of Time to <i>Respond to Complaint and Jury Demand</i> filed by Zoll Data

		Systems, (Text Only Entry - No Document Attached) by Judge Wiley Y. Daniel on 11/22/05. (erv,) (Entered: 11/22/2005)
11/22/2005	12	ORDER granting 10 Dfts Unopposed Motion for Extension of Time to Respond o Complaint and Jury Demand up to and incl 12/5/05. Signed by Magistrate Judge Michael J. Watanabe on 1122/05. (erv,) (Entered: 11/22/2005)
11/28/2005	13	ANSWER to Complaint by Zoll Data Systems.(Fischer, Mark) (Entered: 11/28/2005)
12/08/2005	14	Proposed Scheduling Order by Plaintiff Adept Computer Solutions, Inc.. (McNab, Stewart) (Entered: 12/08/2005)
12/15/2005	15	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe : Scheduling Conference held on 12/15/2005. Scheduling order approved as amended. Discovery due by 8/31/2006. Dispositive Motions due by 9/29/2006. Telephone Status Conference set for 2/3/2006 09:00 AM before Magistrate Judge Michael J. Watanabe. Plaintiff's counsel shall initiate the conference call to opposing counsel and then to the court at (303)844-2403 on that date and time. Settlement Conference set for 3/20/2006 10:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Proposed Final Pretrial Order due by 11/13/2006. Final Pretrial Conference set for 11/15/2006 08:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Jury trial is anticipated for 7 days. Counsel shall meet and confer regarding a protective order.(Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 12/16/2005)
12/15/2005	16	SCHEDULING ORDER: Signed by Magistrate Judge Michael J. Watanabe on 12/15/05. (erv,) (Entered: 12/16/2005)
01/09/2006	17	Joint MOTION for Hearing/Conference <i>Regarding Confidentiality Stipulation and Protective Order</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Document Plaintiff's proposed Protective Order# 2 Proposed Document Defendant's proposed Protective Order)(Stump, Matt) (Entered: 01/09/2006)
01/09/2006	18	MEMORANDUM referring to Magistrate Judge Watanabe : 17 Joint MOTION for Hearing/Conference Regarding Confidentiality Stipulation and Protective Order filed by Zoll Data Systems, (Text Only Entry - No Document Attached) by Judge Wiley Y. Daniel on 1/9/06. (erv,) (Entered: 01/10/2006)
01/11/2006	19	Minute ORDER granting 17 Joint Request for Conference Regarding Confidentiality Stipulation and Protective Order. A status Conference is set 1/26/06 at 8:30 AM, in Courtroom A-502, by Magistrate Judge Michael J. Watanabe on 1/11/06. (lam,) (Entered: 01/11/2006)
01/11/2006	20	Utility Setting/Resetting Deadlines/Hearings: Pursuant to 1/11/06 Minute Order a Status Conference was set for 1/26/2006 08:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Text only entry - no document attached. (lam,) (Entered: 01/11/2006)
01/26/2006	21	Minute Entry for proceedings held before Magistrate Judge Michael J. Watanabe : Status Conference held on 1/26/2006. The Court takes Plaintiff's and Defendants' Proposed Protective Orders (attachments 1 and 2 to document 17), construed as motions for protective order, under advisement. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 01/26/2006)
01/27/2006	22	Utility Setting/Resetting Deadlines/Hearings: Telephone Status Conference set for 2/3/2006 09:00 AM before Magistrate Judge Michael J. Watanabe pursuant to 12/15/05 Minute Entry/Minute Order is reinstated, as the Status Conference set 1/26/06 removed the date as being set. Text only entry - no document attached. (lam,) (Modified on 1/27/2006 to add date of Minute Entry/Minute Order)(lam,). (Entered: 01/27/2006)

01/27/2006	23	Docket Annotation re: 22 Set/Reset Deadlines and Hearings. This entry was modified to add the date of the Minute Entry/Minute Order that set the Telephone Status Conference. Text only entry - no document attached. (lam,) (Entered: 01/27/2006)
01/27/2006	24	ORDER GRANTING 17 Joint MOTION for Hearing/Conference Regarding Confidentiality Stipulation and Protective Order, filed by Zoll Data Systems, . Signed by Magistrate Judge Michael J. Watanabe on 1/27/06. (erv,) (Entered: 01/27/2006)
01/27/2006	25	Confidentiality Stipulation and PROTECTIVE ORDER. Signed by Magistrate Judge Michael J. Watanabe on 1/27/06. (erv,) (Entered: 01/27/2006)
02/03/2006	26	Minute Entry/Minute Order for proceedings held before Judge Michael J. Watanabe : Telephone Status Conference held on 2/3/2006. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 02/03/2006)
02/03/2006	27	NOTICE of Entry of Appearance by Natalie Marie Hanlon-Leh on behalf of Zoll Data Systems (Hanlon-Leh, Natalie) (Entered: 02/03/2006)
02/27/2006	28	First MOTION to Amend/Correct/Modify <i>Complaint 1</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Document)(McNab, Stewart) Modified on 2/28/2006 to create link(emksl,). (Entered: 02/27/2006)
02/28/2006	29	Docket Annotation re: 28 First MOTION to Amend/Correct/Modify <i>Complaint</i> . Docket text altered to create link to Doc. #1. Text only entry - no document attached. (emksl,) (Entered: 02/28/2006)
02/28/2006	30	MEMORANDUM referring to Magistrate Judge Watanabe : 28 First MOTION to Amend/Correct/Modify <i>Complaint 1</i> by Plaintiff (Text Only Entry - No Document Attached) by Judge Wiley Y. Daniel on 2/28/06. (dlb,) (Entered: 02/28/2006)
03/01/2006	31	Joint MOTION to Amend/Correct/Modify 16 Scheduling Order by Plaintiff Adept Computer Solutions, Inc.. (McNab, Stewart) (Modified on 3/2/2006 to reflect the linkage to the Scheduling Order)(erv,). (Entered: 03/01/2006)
03/01/2006	32	MEMORANDUM referring to Magistrate Judge Watanabe : 31 Joint MOTION to Amend/Correct/Modify <i>Scheduling Order</i> filed by Adept Computer Solutions, Inc., (Text Only Entry - No Document Attached) by Judge Wiley Y. Daniel on 3/1/06. (erv,) (Entered: 03/02/2006)
03/03/2006	33	Minute ORDER granting 31 Motion to Amend the Scheduling Order for Joinder of parties and amendment of the pleadings up to and incl 4/21/06, by Magistrate Judge Michael J. Watanabe on 3/3/06. (erv,) (Entered: 03/03/2006)
03/15/2006	34	Stipulated MOTION to Vacate <i>Settlement Conference</i> by Plaintiff Adept Computer Solutions, Inc.. (McNab, Stewart) (Entered: 03/15/2006)
03/15/2006	35	MEMORANDUM referring to Magistrate Judge Watanabe : 34 Stipulated MOTION to Vacate Settlement Conference (Text Only Entry - No Document Attached) by Judge Wiley Y. Daniel on 3/15/06. (dlb,) (Entered: 03/15/2006)
03/17/2006	36	Minute ORDER granting 34 Stipulated Motion to Vacate Settlement Conference. The Settlement Conference set on March 20, 2006,m at 10:30 a.m. is VACATED. The parties shall submit to the court a written status report by April 3, 2006, following their mediation with Steve A. Mains, Esquire. by Magistrate Judge Michael J. Watanabe on 3/17/06. (erv,) (Entered: 03/17/2006)
03/20/2006	37	RESPONSE to Motion re 28 First MOTION to Amend/Correct/Modify <i>Complaint</i> filed by Defendant Zoll Data Systems. (Hanlon-Leh, Natalie) (Entered: 03/20/2006)

03/23/2006	38	ORDER granting 28 Motion to Amend Complaint, each party to pay their own atty fees and costs for this motion. Signed by Magistrate Judge Michael J. Watanabe on 3/23/06. (erv,) (Entered: 03/23/2006)
03/23/2006	39	AMENDED COMPLAINT against Zoll Data Systems , filed by Adept Computer Solutions, Inc..(erv,) (Entered: 03/23/2006)
03/31/2006	40	STATUS REPORT by Plaintiff Adept Computer Solutions, Inc.. (McNab, Stewart) (Entered: 03/31/2006)
04/06/2006	41	ANSWER to Amended Complaint by Zoll Data Systems.(Stump, Matt) (Entered: 04/06/2006)
05/22/2006	42	ORDER of Recusal directing reassignment to another judge. Signed by Judge Wiley Y. Daniel on 5/22/06. (bpm,) (Entered: 05/22/2006)
05/22/2006	43	LETTER REASSIGNING CASE. Case reassigned to Judge Zita L. Weinshienk for all further proceedings. Judge Wiley Y. Daniel is no longer assigned to case. (bpm,) (Entered: 05/22/2006)
06/26/2006	44	Joint MOTION to Amend/Correct/Modify 16 Scheduling Order by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Stump, Matt) (Entered: 06/26/2006)
06/26/2006	45	MEMORANDUM referring to Magistrate Judge Watanabe : 44 Joint MOTION to Amend/Correct/Modify 16 Scheduling Order filed by Zoll Data Systems, by Judge Zita L. Weinshienk on 6/26/06. (Text Only Entry - No Document Attached)(pap2,) (Entered: 06/26/2006)
06/27/2006	46	MINUTE ORDER Granting 44 Joint Motion to Amend/Correct/Modify Scheduling Order. Discovery Cut-Off is extended to 9/29/06 and Dispositive Motions Deadline is extended to 10/31/06. Entered by Magistrate Judge Michael J. Watanabe on 6/27/06. (pap,) (Entered: 06/27/2006)
06/27/2006	47	Utility Resetting Deadlines: Pursuant to 46 Minute Order, Discovery due by 9/29/2006. Dispositive Motions due by 10/31/2006. Text only entry - no document attached. (pap,) (Entered: 06/27/2006)
07/26/2006	48	Joint MOTION to Amend/Correct/Modify 16 Scheduling Order by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Order (PDF Only))(McNab, Stewart) (Entered: 07/26/2006)
07/26/2006	49	MEMORANDUM referring to Magistrate Judge Watanabe : 48 Joint MOTION to Amend/Correct/Modify 16 Scheduling Order filed by Adept Computer Solutions, Inc., by Judge Zita L. Weinshienk on 7/26/06. (Text Only Entry - No Document Attached)(pap2,) (Entered: 07/26/2006)
07/28/2006	50	ORDER granting 48 Motion to Amend Scheduling Order; Discovery cut off 10/31/06; Dispositive Motion cut off 11/30/06; Final Pre-Trial Conf 1/12/07 at 8:30 am. Signed by Magistrate Judge Michael J. Watanabe on 7/28/06. (erv,) (Entered: 07/28/2006)
08/17/2006	51	NOTICE of Withdrawal of Matt Stump as Counsel by Defendant Zoll Data Systems (Stump, Matt) (Entered: 08/17/2006)
08/18/2006	52	Unopposed MOTION to Withdraw as Attorney by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Stump, Matt) (Entered: 08/18/2006)

08/21/2006	53	MINUTE ORDER Granting 52 Defendant's Motion to Withdraw Attorney. Attorney Matt Stump terminated . Entered by Judge Zita L. Weinshienk on 8/21/06. (pap,) (Entered: 08/21/2006)
08/21/2006	54	ORDER TO SHOW CAUSE: returnable by Plaintiff to show cause in writing why this complaint and cause of action should not be dismissed as to Defendants John Does 1-20 for failure to prosecute. Show Cause Response due by 9/11/2006. Signed by Judge Zita L. Weinshienk on 8/21/06. (pap,) (Entered: 08/21/2006)
08/30/2006	55	NOTICE of Entry of Appearance by Mary Virginia Sooter on behalf of Zoll Data Systems (Sooter, Mary) (Entered: 08/30/2006)
09/05/2006	56	Docket Annotation re: 55 Notice of Entry of Appearance. The NEF for this document to Elisabeth Magnuson was returned as undeliverable. The firm advises she is no longer with them. The firm will file a motion to withdraw. The NEF's cannot be resent to Ms. Magnuson. Text only entry - no document attached. (gms,) (Entered: 09/05/2006)
09/06/2006	57	NOTICE of Voluntary Dismissal of Party <i>John Does 1-20</i> by Plaintiff Adept Computer Solutions, Inc. (McNab, Stewart) (Entered: 09/06/2006)
09/27/2006	58	MINUTE ORDER Pursuant to Plaintiff's Notice of Dismissal of Defendants John Doe [sic] 1-20, 54 Order to Show Cause is Discharged. Entered by Judge Zita L. Weinshienk on 9/27/06. (pap,) (Entered: 09/27/2006)
10/20/2006	59	NOTICE of Change in Defendant's Attorneys of Record by Defendant Zoll Data Systems (Sooter, Mary) (Entered: 10/20/2006)
10/23/2006	60	NOTICE of Entry of Appearance by Peter C. Forbes on behalf of Adept Computer Solutions, Inc. (Forbes, Peter) (Entered: 10/23/2006)
10/26/2006	61	Joint MOTION to Amend/Correct/Modify 16 Scheduling Order by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Order (PDF Only))(McNab, Stewart) (Entered: 10/26/2006)
10/26/2006	62	MEMORANDUM regarding 61 Joint MOTION to Amend/Correct/Modify 16 Scheduling Order filed by Adept Computer Solutions, Inc. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Zita L. Weinshienk on 10/26/06. (Text Only Entry - No Document Attached)(pap2,) (Entered: 10/26/2006)
10/30/2006	63	ORDER Granting 61 Joint MOTION to Amend 16 Scheduling Order. Discovery Cut-Off is extended to 12/15/06, Dispositive Motion Deadline is extended to 1/15/07, Final Pretrial Conference is reset to 3/16/07 at 8:30 a.m., Proposed Final Pretrial Order is due 3/9/07. Signed by Magistrate Judge Michael J. Watanabe on 10/27/06.(pap,) (Entered: 10/30/2006)
10/30/2006	64	Utility Resetting Deadlines/Hearings: Pursuant to 63 Order Amended Scheduling Order. Discovery due by 12/15/2006, Dispositive Motions due by 1/15/2007, Proposed Pretrial Order due by 3/9/2007, Final Pretrial Conference set for 3/16/2007 08:30 AM before Magistrate Judge Michael J. Watanabe. Text only entry - no document attached. (pap,) (Entered: 10/30/2006)
11/01/2006	65	MOTION to Withdraw as Attorney <i>Motion to Withdraw Elisabeth Magnuson as Attorney of Record for Defendant Zoll Data Systems, Inc.</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Sooter, Mary) (Entered: 11/01/2006)
11/02/2006	66	MINUTE ORDER granting 65 Defendant Zoll Data Systems, Inc's Motion to Withdraw Elisabeth Magnuson as Attorney. Attorney Elizabeth McGoogan Magnuson terminated. Entered by Judge Zita L. Weinshienk on 11/1/06.(pap,) (Entered: 11/02/2006)

11/03/2006	67	MOTION to Withdraw as Attorney by Plaintiff Adept Computer Solutions, Inc.. (McNab, Stewart) (Entered: 11/03/2006)
11/06/2006	68	MINUTE ORDER Granting 67 MOTION to Withdraw as Attorney by Plaintiff Adept Computer Solutions, Inc. Attorney Stewart McNab terminated. Entered by Judge Zita L. Weinshienk on 11/6/06.(pap,) (Entered: 11/06/2006)
12/05/2006	69	Unopposed MOTION For Extension of Time to <i>expand scheduled deadlines in this action</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Order (PDF Only) proposed order)(Forbes, Peter) (Entered: 12/05/2006)
12/05/2006	70	MEMORANDUM regarding 69 Unopposed MOTION For Extension of Time to expand scheduled deadlines in this action filed by Adept Computer Solutions, Inc. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Zita L. Weinshienk on 12/05/06. (Text Only Entry - No Document Attached)(jjh,) (Entered: 12/06/2006)
12/06/2006	71	ORDER granting unopposed 69 Motion for Enlargement of the scheduled deadlines. Discovery cutoff is 1/14/07, dispositive motion deadline 2/13/07, final pretrial order deadline is 4/8/07, final pretrial conference is set 4/16/07 at 9:30am. Signed by Magistrate Judge Michael J. Watanabe on 12/06/06.(jjh,) (Entered: 12/06/2006)
12/06/2006	72	Utility Setting/Resetting Deadlines/Hearings: Discovery due by 1/14/2007,Dispositive Motions due by 2/13/2007,Proposed Pretrial Order due by 4/8/2007, Final Pretrial Conference set for 4/16/2007 09:30 AM before Magistrate Judge Michael J. Watanabe, per order of 12/06/06 Text only entry - no document attached. (jjh,) (Entered: 12/06/2006)
01/11/2007	73	MOTION to <i>Increase the Number of Interrogatories Allowed</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Fischer, Mark) (Entered: 01/11/2007)
01/12/2007	74	MEMORANDUM regarding 73 MOTION to Increase the Number of Interrogatories Allowed filed by Zoll Data Systems. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Zita L. Weinshienk on 01/12/07. (Text Only Entry - No Document Attached)(jjh,) (Entered: 01/12/2007)
01/16/2007	75	Joint MOTION For Extension of Time to <i>extend currently-scheduled discovery deadlines</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Order (PDF Only) proposed order)(Forbes, Peter) (Entered: 01/16/2007)
01/17/2007	76	MOTION to Amend/Correct/Modify 75 Joint MOTION For Extension of Time to <i>extend currently-scheduled discovery deadlines</i> by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 01/17/2007)
01/17/2007	77	MEMORANDUM regarding 76 MOTION to Amend/Correct/Modify 75 Joint MOTION For Extension of Time to extend currently-scheduled discovery deadlines filed by Adept Computer Solutions, Inc. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Zita L. Weinshienk on 01/17/07. (Text Only Entry - No Document Attached)(jjh,) (Entered: 01/17/2007)
01/18/2007	78	SUPPLEMENT/AMENDMENT to 75 Joint MOTION For Extension of Time to <i>extend currently-scheduled discovery deadlines</i> by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 01/18/2007)
01/18/2007	79	Docket Annotation "Motion" has been terminated as pdf attached is actually a supplement and counsel has refiled correctly re: 76 MOTION to Amend/Correct/Modify 75 Joint MOTION For Extension of Time to extend currently-scheduled discovery deadlines. Text only entry - no document attached. (pap,) (Entered: 01/18/2007)

01/18/2007	80	Minute ORDER granting Joint 75 Motion for Extension of Time. Deadline to complete Discovery is extended to 02/13/07. Deadline to file Dispositive motions is extended to 03/15/07 by Magistrate Judge Michael J. Watanabe on 01/18/07.(jjh,) (Entered: 01/18/2007)
01/18/2007	81	Utility Setting/Resetting Deadlines/Hearings. Pursuant to Minute Order of 01/18/07 Text only entry - no document attached. Discovery due by 2/13/2007. Dispositive Motions due by 3/15/2007. (jjh,) (Entered: 01/18/2007)
02/06/2007	82	RESPONSE to Motion re 73 MOTION to <i>Increase the Number of Interrogatories Allowed</i> filed by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 02/06/2007)
02/06/2007	83	REPLY to Response to Motion re 73 MOTION to <i>Increase the Number of Interrogatories Allowed</i> filed by Defendant Zoll Data Systems. (Sooter, Mary) (Entered: 02/06/2007)
02/07/2007	84	Minute ORDER granting Defendant's 73 Motion Increase Number of Interrogatories Allowed. The number of interrogatories for each side is increased to 40, by Magistrate Judge Michael J. Watanabe on 02/07/07.(jjh,) (Entered: 02/07/2007)
02/15/2007	85	MOTION to Compel <i>Production of Documents</i> by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 02/15/2007)
02/16/2007	86	MEMORANDUM regarding 85 MOTION to Compel <i>Production of Documents</i> filed by Adept Computer Solutions, Inc. Motions referred to Magistrate Judge Michael J. Watanabe, by Judge Zita L. Weinshienk on 2/16/07. (Text Only Entry - No Document Attached)(gms,) (Entered: 02/16/2007)
02/20/2007	87	MINUTE ORDER Defendants have to 03/02/07 to file any response to Plaintiff's Motion to Compel Responses to Requests for Production (docket no. 85) by Magistrate Judge Michael J. Watanabe on 02/20/07. (jjh,) (Entered: 02/21/2007)
03/02/2007	88	RESPONSE to Motion re 85 MOTION to Compel <i>Production of Documents</i> filed by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit A# 2 Exhibit B# 3 Exhibit C) (Sooter, Mary) (Entered: 03/02/2007)
03/06/2007	89	Unopposed MOTION for Leave to File Excess Pages to <i>Exceed Page Limit for its Brief in Support of Motion for Summary Judgment</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Fischer, Mark) (Entered: 03/06/2007)
03/06/2007	90	Unopposed MOTION For Extension of Time to <i>File Motion for Summary Judgment and Brief in Support Thereof</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Fischer, Mark) (Entered: 03/06/2007)
03/07/2007	91	Minute ORDER denying Plaintiff's 85 Motion to Compel Responses to Requests for Production. ORDERED that each party shall pay their own attorney fees and costs for this motion by Magistrate Judge Michael J. Watanabe on 03/07/07.(jjh,) (Entered: 03/07/2007)
03/07/2007	92	Minute ORDER granting in part and denying in part Defendant's Unopposed 89 Motion for Leave to File Excess Pages. Defendant may file a summary judgment brief not to exceed 40 pages; Order granting Defendant's Unopposed 90 Motion for Extension of Time to file Motion by 03/23/07 by Judge Zita L. Weinshienk on 03/07/07.(jjh,) (Entered: 03/07/2007)

03/12/2007	93	MOTION for Order to <i>allow approximately one hour of additional deposition testimony out of time</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Exhibit exhibits a thru d# 2 Proposed Order (PDF Only) proposed order)(Forbes, Peter) (Entered: 03/12/2007)
03/12/2007	94	MOTION For Extension of Time to <i>extend summary judgment deadline and authorize over-size brief</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Exhibit exhibit a# 2 Proposed Order (PDF Only) proposed order)(Forbes, Peter) (Entered: 03/12/2007)
03/12/2007	95	MEMORANDUM regarding 93 MOTION for Order to allow approximately one hour of additional deposition testimony out of time filed by Adept Computer Solutions, Inc. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Zita L. Weinshienk on 03/12/07. (Text Only Entry - No Document Attached)(jjh,) (Entered: 03/12/2007)
03/13/2007	96	ORDER granting Plaintiff 94 Motion to Extend Summary Judgment Deadline and Authorize Over-Size Brief. Adept's Motion for Summary Judgment is due 03/23/07 and Adepts also is authorized leave to file an oversized brief up to 40 pages in length. Signed by Judge Zita L. Weinshienk on 03/13/07.(jjh,) (Entered: 03/13/2007)
03/16/2007	97	RESPONSE to Motion re 93 MOTION for Order to <i>allow approximately one hour of additional deposition testimony out of time</i> filed by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit A# 2 Deposition Excerpts B# 3 Exhibit C# 4 Exhibit D# 5 Exhibit E# 6 Exhibit F# 7 Exhibit G# 8 Exhibit H# 9 Exhibit I# 10 Exhibit J# 11 Exhibit K# 12 Exhibit L)(Sooter, Mary) (Entered: 03/16/2007)
03/16/2007	98	Second MOTION For Extension of Time to <i>file summary judgment motions</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Order (PDF Only) proposed order)(Forbes, Peter) (Entered: 03/16/2007)
03/16/2007	99	MOTION to Vacate 71 Order on Motion for Extension of Time, <i>final pretrial conference</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Order (PDF Only) proposed order)(Forbes, Peter) (Entered: 03/16/2007)
03/16/2007	100	REPLY to Response to Motion re 93 MOTION for Order to <i>allow approximately one hour of additional deposition testimony out of time</i> filed by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Exhibit exhibits a and b)(Forbes, Peter) (Entered: 03/16/2007)
03/19/2007	101	MEMORANDUM regarding 99 MOTION to Vacate 71 Order on Motion for Extension of Time, final pretrial conference filed by Adept Computer Solutions, Inc. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Zita L. Weinshienk on 03/19/07. (Text Only Entry - No Document Attached)(jjh,) (Entered: 03/19/2007)
03/19/2007	102	Minute ORDER granting Plaintiff's 93 Motion to Allow Approximately One Hour of Additional Deposition Testimony. Discovery is extended to 04/13/07 by Magistrate Judge Michael J. Watanabe on 03/19/07.(jjh,) (Entered: 03/19/2007)
03/20/2007	103	ORDER granting Plaintiff's Unopposed 98 Motion for Extension of Time to File Summary Judgment Motions by 04/13/07. Signed by Judge Zita L. Weinshienk on 03/20/07.(jjh,) (Entered: 03/20/2007)
03/21/2007	104	Minute ORDER granting Plaintiff's 99 Motion to Vacate and Reschedule Final Pretrial Conference. Final Pretrial Conference set on 04/16/07 is vacated and reset on 05/04/07 at 9:30 a.m. by Magistrate Judge Michael J. Watanabe on 03/21/07.(jjh,) Modified on 3/21/2007 to correct Judge (jjh,). (Entered: 03/21/2007)

03/21/2007	105	Utility Setting/Resetting Deadlines/Hearings: Set Final Pretrial Conference pursuant to Minute Order of 03/21/07. Text only entry - no document attached. Final Pretrial Conference set for 5/4/2007 09:30 AM in Courtroom A 901 before Magistrate Judge Michael J. Watanabe. (jjh,) (Entered: 03/21/2007)
03/21/2007	106	Docket Annotation re: 104 Order on Motion to Vacate. Modified to correct what Judge did Minute Order. Text only entry - no document attached. (jjh,) (Entered: 03/21/2007)
04/13/2007	107	Unopposed MOTION For Extension of Time to <i>File Motion for Summary Judgment and Brief in Support Thereof</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Hanlon-Leh, Natalie) (Entered: 04/13/2007)
04/13/2007	108	Unopposed MOTION For Extension of Time to <i>File Pre-Trial Order and to Vacate and Reschedule Final Pre-Trial Conference</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Hanlon-Leh, Natalie) (Entered: 04/13/2007)
04/13/2007	109	Minute ORDER granting Defendant's Unopposed 107 Motion for Extension of Time to File Motion for Summary Judgment to 4/27/07, by Judge Zita L. Weinshienk on 4/13/07. (gms,) (Entered: 04/13/2007)
04/16/2007	110	MEMORANDUM regarding 108 Unopposed MOTION For Extension of Time to File Pre-Trial Order and to Vacate and Reschedule Final Pre-Trial Conference filed by Zoll Data Systems. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Zita L. Weinshienk on 04/16/07. (Text Only Entry - No Document Attached)(jjh,) (Entered: 04/16/2007)
04/17/2007	111	MOTION to Withdraw <i>Mark W. Fischer as Attorney of Record for Defendant Zoll Data Systems, Inc.</i> by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only))(Fischer, Mark) (Entered: 04/17/2007)
04/18/2007	112	Minute ORDER granting 111 Motion to Withdraw. Mark W. Fisher is terminated by Judge Zita L. Weinshienk on 04/18/07.(jjh,) (Entered: 04/18/2007)
04/18/2007	113	ORDER granting Defendant's Unopposed 108 Motion for Extension of Time to File Motion for Summary Judgment and Brief in Support by 04/27/07. Signed by Magistrate Judge Michael J. Watanabe on 04/18/07.(jjh,) (Entered: 04/18/2007)
04/23/2007	114	MINUTE ORDER It is hereby ORDERED that the Order Granting Defendants Unopposed Motion for Extension of Time to File Motion for Summary Judgment and Brief in Support Thereof, Document Number 113, entered by Magistrate Judge Watanabe is VACATED by Magistrate Judge Michael J. Watanabe on 04/23/07. (jjh,) (Entered: 04/23/2007)
04/23/2007	115	MINUTE ORDER setting Final Pretrial Conference for 6/6/2007 03:00 PM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. The Final Pretrial Conference set on 05/04/07 is vacated. Signed by Magistrate Judge Michael J. Watanabe on 04/23/07. (jjh,) (Entered: 04/23/2007)
04/27/2007	116	Unopposed MOTION For Extension of Time to <i>file summary judgment motions</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Order (PDF Only) proposed order)(Forbes, Peter) (Entered: 04/27/2007)
04/27/2007	117	Minute ORDER granting 116 Motion for Extension of Time to file Summary Judgment Motions by 04/30/07 by Judge Zita L. Weinshienk on 04/27/07.(jjh,) (Entered: 04/30/2007)
04/30/2007	118	Partial MOTION for Summary Judgment by Defendant Zoll Data Systems. (Sooter, Mary) (Entered: 04/30/2007)

04/30/2007	119	Unopposed MOTION to Seal <i>Defendant's Brief in Support of Its Motion for Partial Summary Judgment</i> by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit Declaration of Mindy Sooter in Support of Motion to Seal# 2 Proposed Order (PDF Only))(Sooter, Mary) (Entered: 04/30/2007)
04/30/2007	120	SEALED DOCUMENT by Defendant Zoll Data Systems. (Sooter, Mary) (Entered: 04/30/2007)
04/30/2007	121	SEALED DOCUMENT by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit A# 2 Exhibit A-1# 3 Exhibit A-2# 4 Exhibit A-3# 5 Exhibit A-4# 6 Exhibit A-5# 7 Exhibit A-6# 8 Exhibit A-7# 9 Exhibit A-8# 10 Exhibit A-9# 11 Deposition Excerpts A-10# 12 Exhibit A-11# 13 Exhibit A-12# 14 Exhibit A-13# 15 Exhibit A-14# 16 Exhibit A-15# 17 Exhibit A-16# 18 Exhibit A-17# 19 Exhibit A-18# 20 Exhibit A-19# 21 Exhibit A-20# 22 Exhibit A-21# 23 Exhibit A-22# 24 Exhibit A-23# 25 Exhibit B# 26 Exhibit C# 27 Exhibit C-1# 28 Exhibit C-2# 29 Exhibit C-3# 30 Deposition Excerpts D (Part I)# 31 Exhibit D (Part II)# 32 Exhibit E# 33 Exhibit F (Part I)# 34 Exhibit F (Part II)# 35 Exhibit G (Part I)# 36 Exhibit G (Part II)# 37 Exhibit H# 38 Exhibit I# 39 Deposition Excerpts J# 40 Deposition Excerpts K# 41 Deposition Excerpts L# 42 Deposition Excerpts M# 43 Deposition Excerpts N# 44 Exhibit O# 45 Exhibit P# 46 Exhibit Q# 47 Exhibit R# 48 Exhibit S# 49 Exhibit T# 50 Exhibit U)(Sooter, Mary) (Entered: 04/30/2007)
04/30/2007	122	MOTION for Partial Summary Judgment by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Appendix cover page of appendices a thru e# 2 Appendix part two deposition excerpts# 3 Appendix part three deposition excerpts# 4 Appendix part four deposition excerpts# 5 Appendix part five deposition excerpts# 6 Appendix part six deposition excerpts# 7 Appendix part one adept documents# 8 Appendix part two adept documents# 9 Appendix part one deposition excerpts)(Forbes, Peter) Modified on 5/3/2007 to note that Motion has been stricken pursuant to Order of 05/02/07 (jjh,). (Entered: 04/30/2007)
04/30/2007	123	SEALED DOCUMENT by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Appendix part two deposition exhibits# 2 Appendix part three deposition exhibits# 3 Appendix part four deposition exhibits# 4 Appendix part five deposition exhibits# 5 Appendix part six deposition exhibits# 6 Appendix part seven deposition exhibits# 7 Appendix part one zoll documents# 8 Appendix part two zoll documents# 9 Appendix part three zoll documents# 10 Appendix part four zoll documents# 11 Appendix miscellaneous supporting documents)(Forbes, Peter) (Entered: 04/30/2007)
04/30/2007	124	BRIEF in Support re 118 Partial MOTION for Summary Judgment filed by Defendant Zoll Data Systems. (Public entry for Sealed Document 120 filed 04/30/07). Text only entry-no document attached. (jhhsl,) (Entered: 05/01/2007)
05/01/2007	125	Defendants STATEMENT in Support of 120 Sealed Document filed by Defendant Zoll Data Systems. (Public Entry for Sealed Document 121 filed 04/30/07) Text only entry-no document attached. (jhhsl,) (Entered: 05/01/2007)
05/01/2007	126	APPENDIX B 1-11 re 122 Plaintiffs MOTION for Partial Summary Judgment filed by Plaintiff Adept Computer Solutions, Inc. (Public entry for Sealed Document 123 filed 04/30/07) Text only entry-no document attached. (jhhsl,) (Entered: 05/01/2007)
05/02/2007	127	ORDER that Plaintiff shall re-file its Motion for Partial Summary Judgment 122 . Ordered that Plaintiff's Motion for Partial Summary Judgment is Stricken. Ordered that all exhibits submitted with Plaintiff's motion shall be designated as exhibits, not appendices, and marked with numbers. Ordered that all references to exhibits in Plaintiff's brief shall cite to the exhibit number and page number of the exhibit being referenced. Signed by Judge Zita L. Weinshienk on 05/02/07. (jjh,) (Entered: 05/03/2007)

05/03/2007	128	MINUTE ORDER on 05/02/07 the Court ordered Plaintiff to re-file its Motion for Partial Summary Judgment by 05/14/07. Ordered that Defendant shall file its brief in response to Plaintiffs re-filed Motion for Partial Summary Judgment by 06/06/07. Ordered that Plaintiff may file its reply brief by 06/25/07 by Judge Zita L. Weinshienk on 05/03/07. (jjh,) (Entered: 05/03/2007)
05/04/2007	129	ORDER from Judge Weinshienk declining this case and directing the Clerk's Office to reassign to another district judge. Signed by Judge Zita L. Weinshienk on 5/4/2007. (llr,) Modified on 5/4/2007 to correct a typographical error (llr,). (Entered: 05/04/2007)
05/04/2007	130	Docket Annotation re: 129 Order. This docket entry was modified to correct a typographical error. Text only entry - no document attached. (llr,) (Entered: 05/04/2007)
05/04/2007	131	LETTER REASSIGNING CASE per Order of 5/4/2007. Case reassigned to Judge Richard P. Matsch for all further proceedings. Judge Zita L. Weinshienk is no longer assigned to case. (llr,) (Entered: 05/04/2007)
05/08/2007	132	MINUTE ORDER setting Status Conference for 5/16/2007 10:00 AM in Conference Room before Judge Richard P. Matsch by Judge Richard P. Matsch on 05/08/07. (jjh,) (Entered: 05/08/2007)
05/14/2007	133	MOTION for Partial Summary Judgment by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Deposition Excerpts exhibit 1# 2 Exhibit exhibit 3# 3 Exhibit exhibit 6# 4 Deposition Excerpts exhibit 7# 5 Exhibit exhibit 9# 6 Exhibit exhibit 10# 7 Deposition Excerpts exhibit 11# 8 Deposition Excerpts exhibit 11, part 2# 9 Exhibit exhibit 13# 10 Deposition Excerpts exhibit 17# 11 Exhibit exhibit 27# 12 Exhibit exhibit 28# 13 Exhibit exhibit 29# 14 Affidavit exhibit 30# 15 Exhibit exhibit 31# 16 Exhibit exhibit 33# 17 Exhibit exhibit 40# 18 Exhibit exhibit 41# 19 Exhibit exhibit 42# 20 Exhibit exhibit 43# 21 Exhibit exhibit 44# 22 Deposition Excerpts exhibit 46# 23 Exhibit exhibit 48# 24 Deposition Excerpts exhibit 49# 25 Deposition Excerpts exhibit 50# 26 Deposition Excerpts exhibit 51)(Forbes, Peter) (Entered: 05/14/2007)
05/14/2007	134	MOTION to Seal Document <i>certain exhibits to plaintiff's motion for partial summary judgment (see #133)</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Exhibit exhibit 2# 2 Exhibit exhibit 4# 3 Exhibit exhibit 5# 4 Exhibit exhibit 8# 5 Exhibit exhibit 12# 6 Exhibit exhibit 14# 7 Exhibit exhibit 15# 8 Exhibit exhibit 16# 9 Exhibit exhibit 18# 10 Exhibit exhibit 19# 11 Exhibit exhibit 20# 12 Deposition Excerpts exhibit 21# 13 Exhibit exhibit 22# 14 Exhibit exhibit 23# 15 Exhibit exhibit 24# 16 Exhibit exhibit 25# 17 Exhibit exhibit 26# 18 Exhibit exhibit 32# 19 Exhibit exhibit 34# 20 Exhibit exhibit 35# 21 Exhibit exhibit 36# 22 Exhibit exhibit 37# 23 Exhibit exhibit 38# 24 Exhibit exhibit 39# 25 Exhibit exhibit 45# 26 Pages exhibit 47# 27 Exhibit exhibit 52# 28 Proposed Order (PDF Only) proposed order)(Forbes, Peter) (Entered: 05/14/2007)
05/14/2007	135	CERTIFICATE of Mailing/Service re 134 MOTION to Seal Document <i>certain exhibits to plaintiff's motion for partial summary judgment (see #133)</i> MOTION to Seal Document <i>certain exhibits to plaintiff's motion for partial summary judgment (see #133)</i> MOTION to Seal Document <i>certain exhibits to plaintiff's motion for partial summary judgment (see #133)</i> MOTION to Seal Document <i>certain exhibits to plaintiff's motion for partial summary judgment (see #133)</i> by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 05/14/2007)
05/15/2007	139	ORDER granting Plaintiff's 134 Motion to File certain Exhibits to its Motion for Partial Summary Judgment under Seal. Signed by Judge Richard P. Matsch on 05/15/07.(jjh,) (Entered: 05/16/2007)
05/16/2007	136	ORDER Vacating 2 Order Referring Case to Magistrate Judge. Signed by Judge Richard P. Matsch on 05/16/07. (jjh,) (Entered: 05/16/2007)

05/16/2007	137	ORDER setting Pretrial Conference for 7/13/2007 02:00 PM in Conference Room before Judge Richard P. Matsch. Proposed Final Pretrial Order shall be delivered in paper form to chambers by 07/06/07. Signed by Judge Richard P. Matsch on 05/16/07. (jjh,) (Entered: 05/16/2007)
05/16/2007	138	Minute Entry for proceedings held before Judge Richard P. Matsch: Ordered that Order of Reference to Magistrate Judge is Vacated. Plaintiff's injunctive relief claim is withdrawn. Order Denying Defendant's 118 Motion for Partial Summary Judgment. Order Granting Defendant's Unopposed 119 Motion to File under Seal Defendant's Brief in Support of it's Motion for Partial Summary Judgment. Order Denying Plaintiff's 133 Motion for Partial Summary Judgment. Status Conference held on 5/16/2007. Hearing Concluded (Court Reporter Kathy Terasaki.) (jjh,) (Entered: 05/16/2007)
07/13/2007	140	Minute Entry - Courtroom Minutes for Final Pretrial Conference held on 7/13/2007 before Judge Richard P. Matsch. ORDERED: Counsel shall revise and submit an agreed final pretrial order by July 16, 2007, simultaneous briefs on legal issues are to be filed by October 1, 2007 and responses by October 15, 2007, agreed statement of case, proposed instructions and voir dire to be submitted by October 1, 2007, two week jury trial scheduled December 3, 2007. (Court Reporter ECR - K. Terasaki) (rpmcd) (Entered: 07/16/2007)
07/16/2007	141	ORDER Setting Jury Trial for 12/3/2007 09:00 AM in Courtroom A before Judge Richard P. Matsch. Signed by Judge Richard P. Matsch on 7/16/07. (lam,) (Entered: 07/16/2007)
07/17/2007	142	Final PRETRIAL ORDER. Trial will be to a jury. Estimated trial time is 10 days. Signed by Judge Richard P. Matsch on 07/17/07. (jjh,) (Entered: 07/17/2007)
07/25/2007	143	Stipulated MOTION For Extension of Time to <i>exchange trial exhibits and objections to exhibits</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Order (PDF Only) proposed order)(Forbes, Peter) (Entered: 07/25/2007)
07/25/2007	144	ORDER granting 143 Motion to Extend the Exchange of Trial Exhibits and Objections to Exhibits. Deadline by which trial exhibits need to be exchanged is 08/07/07. Deadline for filing Objections to trial exhibits is 08/17/07. Signed by Judge Richard P. Matsch on 07/25/07.(jjh,) (Entered: 07/25/2007)
08/17/2007	145	OBJECTIONS to <i>Plaintiff Adept's Proposed Trial Exhibits</i> by Defendant Zoll Data Systems. (Sooter, Mary) (Entered: 08/17/2007)
08/17/2007	146	OBJECTIONS to <i>Defendant's Trial Exhibits</i> by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 08/17/2007)
10/01/2007	147	MOTION to Bifurcate <i>and to Strike Plaintiff's Jury Demand</i> by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit A# 2 Exhibit B)(Hanlon-Leh, Natalie) (Entered: 10/01/2007)
10/01/2007	148	MOTION for Ruling <i>as a Matter of Law</i> by Defendant Zoll Data Systems. (Hanlon-Leh, Natalie) (Entered: 10/01/2007)
10/01/2007	149	MOTION in Limine <i>to Exclude Evidence of Alleged Willfulness</i> by Defendant Zoll Data Systems. (Hanlon-Leh, Natalie) (Entered: 10/01/2007)
10/01/2007	150	MOTION in Limine <i>to Exclude Evidence Regarding Breach of Contract</i> by Defendant Zoll Data Systems. (Hanlon-Leh, Natalie) (Entered: 10/01/2007)
10/01/2007	151	MOTION in Limine <i>to Exclude Evidence of Unrelated Profits</i> by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit A# 2 Exhibit B# 3 Exhibit C# 4 Exhibit D# 5 Proposed Order (PDF Only))(Hanlon-Leh, Natalie) (Entered: 10/01/2007)

10/01/2007	152	TRIAL BRIEF <i>AND BRIEF IN SUPPORT OF MOTION FOR RULING AS A MATTER OF LAW</i> [Docket Entry # 148] by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit A# 2 Exhibit B# 3 Exhibit C# 4 Exhibit D# 5 Exhibit E# 6 Exhibit F# 7 Exhibit G)(Hanlon-Leh, Natalie) (Entered: 10/01/2007)
10/02/2007	153	TRIAL BRIEF by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 10/02/2007)
10/05/2007	154	MOTION to Strike 148 MOTION for Ruling <i>as a Matter of Law</i> , 149 MOTION in Limine <i>to Exclude Evidence of Alleged Willfulness</i> , 151 MOTION in Limine <i>to Exclude Evidence of Unrelated Profits</i> , 152 Trial Brief, <i>or, in the alternative, for clarification concerning response date</i> by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 10/05/2007)
10/10/2007	155	RESPONSE to Motion re 154 MOTION to Strike 148 MOTION for Ruling <i>as a Matter of Law</i> , 149 MOTION in Limine <i>to Exclude Evidence of Alleged Willfulness</i> , 151 MOTION in Limine <i>to Exclude Evidence of Unrelated Profits</i> , 152 Trial Brief, <i>or, in the alte filed by Defendant Zoll Data Systems. (Hanlon-Leh, Natalie) Modified on 10/11/2007 to delete duplication(jjh,). (Entered: 10/10/2007)</i>
10/11/2007	156	REPLY to Response to Motion re 154 MOTION to Strike 148 MOTION for Ruling <i>as a Matter of Law</i> , 149 MOTION in Limine <i>to Exclude Evidence of Alleged Willfulness</i> , 151 MOTION in Limine <i>to Exclude Evidence of Unrelated Profits</i> , 152 Trial Brief, <i>or, in the alte filed by Plaintiff Adept Computer Solutions, Inc. (Forbes, Peter) Modified on 10/12/2007 to delete duplication (jjh,). (Entered: 10/11/2007)</i>
10/15/2007	157	TRIAL BRIEF <i>Response to Plaintiff's Trial Brief</i> [Docket #153] by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit A# 2 Exhibit B# 3 Exhibit C# 4 Exhibit D)(Hanlon-Leh, Natalie) (Entered: 10/15/2007)
10/15/2007	158	RESPONSE to 152 Trial Brief, by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 10/15/2007)
10/18/2007	159	Unopposed MOTION for Extension of Time to File Response/Reply as to 149 MOTION in Limine <i>to Exclude Evidence of Alleged Willfulness</i> , 150 MOTION in Limine <i>to Exclude Evidence Regarding Breach of Contract</i> , 147 MOTION to Bifurcate <i>and to Strike Plaintiff's Jury Demand</i> , 151 MOTION in Limine <i>to Exclude Evidence of Unrelated Profits</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Proposed Document proposed order)(Forbes, Peter) (Entered: 10/18/2007)
11/02/2007	160	DESIGNATION OF DEPOSITION TESTIMONY by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 11/02/2007)
11/05/2007	161	DESIGNATION OF DEPOSITION TESTIMONY (<i>amended</i>) by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 11/05/2007)
11/08/2007	162	ORDER setting Final Pretrial Conference for 11/27/2007 02:00 PM in Conference Room before Judge Richard P. Matsch. Signed by Judge Richard P. Matsch on 11/08/07. (jjh,) (Entered: 11/08/2007)
11/08/2007	163	ORDER denying Zoll Data Systems' 147 Motion to Bifurcate the Trial. Order denying Zoll Data Systems' 148 Motion for Ruling <i>as a Matter</i> . Order denying Zoll Data Systems' 149 Order on Motion in Limine <i>to Exclude Evidence of Zoll's Alleged Willfulness</i> . Order denying Zoll Data Systems' 150 Order on Motion in Limine. Signed by Judge Richard P. Matsch on 11/08/07.(jjh,) (Entered: 11/08/2007)
11/08/2007	164	ORDER Directing Response to Defendant's Motion to Exclude Evidence of Zoll's Unrelated Profits. ORDERED that on or before November 16, 2007, the plaintiff shall

		submit in response to the defendants motion a statement of its claims for damages on the separate claims for relief to be tried in this case under the final pretrial order and the evidence expected to be introduced in support of those claims. Signed by Judge Richard P. Matsch on 11/08/07. (jjh,) (Entered: 11/08/2007)
11/14/2007	165	DESIGNATION OF DEPOSITION TESTIMONY (<i>Counter-Designations</i>) by Defendant Zoll Data Systems. (Hanlon-Leh, Natalie) (Entered: 11/14/2007)
11/16/2007	166	RESPONSE to Motion re 151 MOTION in Limine to <i>Exclude Evidence of Unrelated Profits instructed by court order directing a response</i> filed by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 11/16/2007)
11/26/2007	167	RESPONSE to <i>Plaintiffs Statement of Claimed Damages</i> by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit D, # 6 Exhibit E, # 7 Exhibit F, # 8 Exhibit G, # 9 Exhibit H, # 10 Exhibit I, # 11 Exhibit J, # 12 Exhibit K)(Hanlon-Leh, Natalie) (Entered: 11/26/2007)
11/26/2007	168	OBJECTIONS to <i>defendant's trial exhibits (revised)</i> by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 11/26/2007)
11/27/2007	169	REPLY to 166 Response to Motion, 164 Order, 167 Response, <i>concerning damage specification</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Exhibit a) (Forbes, Peter) (Entered: 11/27/2007)
11/27/2007	170	Minute Entry - Courtroom Minutes for Final Pretrial Conference held on 11/27/2007 before Judge Richard P. Matsch. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 11/28/2007)
11/28/2007	171	OBJECTIONS to <i>Plaintiff's Trial Exhibits (Revised)</i> by Defendant Zoll Data Systems. (Hanlon-Leh, Natalie) (Entered: 11/28/2007)
11/30/2007	172	NOTICE of Entry of Appearance by James Gordon Sawtelle on behalf of Zoll Data Systems (Sawtelle, James) (Entered: 11/30/2007)
12/03/2007	174	Minute Entry - Courtroom Minutes for Jury Trial Day One held on 12/3/2007 before Judge Richard P. Matsch. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/04/2007)
12/03/2007	175	Defendant Witness List by Defendant Zoll Data Systems. (jjh,) (Entered: 12/04/2007)
12/03/2007	176	Plaintiff's Witness List.(jjh,) (Entered: 12/04/2007)
12/03/2007	177	Redacted Jury Strike Sheet. (jjh,) (Entered: 12/04/2007)
12/03/2007	178	SEALED DOCUMENT-Unredacted Jury Strike Sheet. (jjh,) (gmssl,). (Entered: 12/04/2007)
12/04/2007	173	TRANSCRIPT of Trial to Jury - Day 1 held on 12/3/2007 before Judge Matsch. Pages: 1-283. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/04/2007)
12/04/2007	179	BRIEF <i>Bench Memorandum Regarding Inadmissibility of Evidence of Events That Occurred After Zoll's Alleged Actions That Form The Basis of Plaintiff's Claims</i> by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit 1 - Plaintiff's Exhibits 361-368) (Hanlon-Leh, Natalie) (Entered: 12/04/2007)

12/04/2007	181	Minute Entry - Courtroom Minutes for Jury Trial Day Two held on 12/4/2007 before Judge Richard P. Matsch. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/05/2007)
12/05/2007	180	TRANSCRIPT of Trial to Jury - Day 2 held on 12/04/2007 before Judge Matsch. Pages: 284-523. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/05/2007)
12/05/2007	183	Minute Entry - Courtroom Minutes for Jury Trial Day Three held on 12/5/2007 before Judge Richard P. Matsch. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/06/2007)
12/05/2007	194	Minute Entry - Amended Courtroom Minutes re 183 for Jury Trial Day Three held 12/5/2007 before Judge Richard P. Matsch. Amended to remove E-21 as a received exhibit. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/12/2007)
12/06/2007	182	TRANSCRIPT of Trial to Jury - Day 3 held on 12/05/2007 before Judge Matsch. Pages: 524-797. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/06/2007)
12/06/2007	185	Minute Entry - Courtroom Minutes for Jury Trial Day Four held on 12/6/2007 before Judge Richard P. Matsch. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/07/2007)
12/07/2007	184	TRANSCRIPT of Trial to Jury - Day 4 held on 12/06/2007 before Judge Matsch. Pages: 798-1060. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/07/2007)
12/07/2007	189	Minute Entry - Courtroom Minutes for Jury Trial Day 5 held on 12/7/2007 before Judge Richard P. Matsch. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/10/2007)
12/08/2007	186	TRANSCRIPT of Trial to Jury - Day 5 held on 12/07/2007 before Judge Matsch. Pages: 1061-1319. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/08/2007)
12/10/2007	187	DESIGNATION OF DEPOSITION TESTIMONY of <i>Christopher Berg</i> by Defendant Zoll Data Systems. (Hanlon-Leh, Natalie) (Entered: 12/10/2007)
12/10/2007	188	DESIGNATION OF DEPOSITION TESTIMONY for <i>christoper phillip john berg (revised)</i> by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 12/10/2007)
12/10/2007	190	DESIGNATION OF DEPOSITION TESTIMONY Of <i>Robert Moore</i> by Defendant Zoll Data Systems. (Sooter, Mary) (Entered: 12/10/2007)

12/10/2007	192	Minute Entry - Courtroom Minutes for Jury Trial Day Six held on 12/10/2007 before Judge Richard P. Matsch. ORDERED: Plaintiff's Lanham Act Claim is withdrawn. Defendant's oral Rule 50 motion with respect to Infringement of Street Wizard copyright software command is denied. Defendant's oral Rule 50 motion on Plaintiff's Seventh and Eighth Claims of the Second Amended Complaint is denied under §1202 and granted with respect to §1201 of Title 17. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/11/2007)
12/11/2007	191	TRANSCRIPT of Trial to Jury - Day 6 held on 12-10-2007 before Judge Matsch. Pages: 1320-1572. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/11/2007)
12/11/2007	195	Minute Entry - Courtroom Minutes for Jury Trial Day Seven held on 12/11/2007 before Judge Richard P. Matsch. (Attachments: # 1 Refused Jury Instructions) (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/12/2007)
12/12/2007	193	TRANSCRIPT of Trial to Jury - Day 7 held on 12/11/2007 before Judge Matsch. Pages: 1573-1781. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/12/2007)
12/12/2007	197	Minute Entry - Courtroom Minutes for Jury Trial Day Eight held on 12/12/2007 before Judge Richard P. Matsch. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/13/2007)
12/13/2007	196	TRANSCRIPT of Trial to Jury - Day 8 held on 12/12/2007 before Judge Matsch. Pages: 1782-1921. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/13/2007)
12/13/2007	198	TRANSCRIPT of Trial to Jury - Day 9 held on 12/13/2007 before Judge Matsch. Pages: 1922-1926. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/13/2007)
12/13/2007	199	Minute Entry - Courtroom Minutes for Jury Trial Day Nine held on 12/13/2007 before Judge Richard P. Matsch. (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/14/2007)
12/14/2007	200	Stipulation and ORDER Regarding Custody of Exhibits and Depositions. Signed by Judge Richard P. Matsch on 12/14/07. (jjh,) (Entered: 12/14/2007)
12/14/2007	202	Minute Entry - Courtroom Minutes for Jury Trial Day Ten completed on 12/14/2007 before Judge Richard P. Matsch. ORDERED: DMCA statutory damages are \$2,500.00 per violation (47) for a total amount of \$117,500.00. Briefs on prejudgment interest and attorney fees are to be filed by December 26, 2007 and responses by January 2, 2008. Entry of judgment withheld pending filing of briefs. JURY VERDICT. Verdict form retained pursuant to General Order 2007-3. Exhibits and depositions returned to counsel.

		(Attachments: # 1 Plaintiff's Exhibit List, # 2 Defendant's Exhibit List) (Court Reporter FTR - K. Terasaki) (rpmcd) (Entered: 12/17/2007)
12/15/2007	201	TRANSCRIPT of Trial to Jury - Day 10 held on 12/14/2007 before Judge Matsch. Pages: 1927-1945. Prepared by: Federal Reporting Service, Inc. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Federal Reporting Service, Inc.,) (Entered: 12/15/2007)
12/26/2007	203	MOTION for Attorney Fees by Defendant Zoll Data Systems. (Attachments: # 1 Deposition Excerpts A, # 2 Exhibit B, # 3 Exhibit C)(Hanlon-Leh, Natalie) (Entered: 12/26/2007)
12/26/2007	204	MOTION for Attorney Fees <i>and award of prejudgment interest</i> by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Exhibit a (1 page), b (1 page) c (14 pages)) (Forbes, Peter) (Entered: 12/26/2007)
12/27/2007		Utility: MOTION 151 in Limine to Exclude Evidence of Unrelated Profits by Zoll Data Systems terminated pursuant to chambers on 12/27/2007. (rpmcd) (Entered: 12/27/2007)
12/31/2007	205	Joint MOTION For Extension of Time to <i>Respond to Post Trial Motions</i> 203 and 204 by Defendant Zoll Data Systems. (Attachments: # 1 Proposed Order (PDF Only) Granting Extension of Time)(Hanlon-Leh, Natalie) Modified on 1/2/2008 to create linkage to Docs #203 and 204.(gms,). (Entered: 12/31/2007)
01/02/2008	206	ORDER granting Joint 205 Motion for Extension of Time to File Responses to Post Trial Motions to 1/8/08. Signed by Judge Richard P. Matsch on 1/2/08.(gms,) (Entered: 01/02/2008)
01/02/2008	207	Docket Annotation re: 205 Joint MOTION For Extension of Time to Respond to Post Trial Motions. This docket entry was modified to create linkage to Docs #203 and 204. Text only entry - no document attached (gms,) (Entered: 01/02/2008)
01/08/2008	208	RESPONSE to Motion re 203 MOTION for Attorney Fees filed by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 01/08/2008)
01/08/2008	209	RESPONSE to Motion re 204 MOTION for Attorney Fees <i>and award of prejudgment interest</i> filed by Defendant Zoll Data Systems. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2, # 3 Exhibit 3, # 4 Exhibit 3A, # 5 Exhibit 4, # 6 Exhibit 5, # 7 Exhibit 6, # 8 Exhibit 7) (Hanlon-Leh, Natalie) (Entered: 01/08/2008)
01/11/2008	210	REPLY to Response to Motion re 204 MOTION for Attorney Fees <i>and award of prejudgment interest</i> filed by Plaintiff Adept Computer Solutions, Inc.. (Attachments: # 1 Exhibit a)(Forbes, Peter) (Entered: 01/11/2008)
01/11/2008	211	MOTION to Strike 209 Response to Motion, <i>as to the settlement letters attached as exhibits</i> by Plaintiff Adept Computer Solutions, Inc.. (Forbes, Peter) (Entered: 01/11/2008)
01/14/2008	212	RESPONSE to Motion re 211 MOTION to Strike 209 Response to Motion, <i>as to the settlement letters attached as exhibits</i> filed by Defendant Zoll Data Systems. (Hanlon-Leh, Natalie) (Entered: 01/14/2008)
02/14/2008	213	Ruling on Post-Verdict Motions and Order for Entry of Final Judgment. Ordered that the Clerk of this Court shall enter final judgment in accordance with the verdict and these rulings. Signed by Judge Richard P. Matsch on 02/14/08. (jjh,) (Entered: 02/14/2008)

02/14/2008	214	JUDGMENT. ORDERED that defendants John Does 1-20 were dismissed. ORDERED that plaintiffs claims for injunctive relief and Lanham act were withdrawn. ORDERED that all remaining claims except for ones submitted to the jury were dismissed. ORDERED judgment is entered in favor of the plaintiff Adept Computer Solutions, Inc. and against defendant Zoll Data Systems, Inc. for \$150,660.21 on the claim for breach of contract and \$243,750.00 on the claim for copyright infringement and \$117,500.00 on the claim for a violation of DMCA under 17 U.S.C. § 1203(b)(5). ORDERED that plaintiff is awarded prejudgment interest in the amount of \$72,798.09 on its claim for breach of contract and \$67,312.46 on its claim for copyright infringement. ORDERED that the total judgment amount awarded to plaintiff plus prejudgment interest is \$652,020.76. ORDERED that no attorney fees are awarded on plaintiffs claim for a violation of the DMCA under 17 U.S.C. § 1203(b)(5). ORDERED that no costs are awarded pursuant to Fed.R.Civ.P. 54(d). ORDERED that post judgment interest shall accrue at the legal rate of 2.08% from the date of entry of this judgment. Signed by Clerk approved by Senior Judge Matsch on 02/14/08. (jjh,) (Entered: 02/14/2008)
02/29/2008	215	SATISFACTION OF JUDGMENT re 214 Clerk's Judgment,,,,, entered In favor of Adept Computer Solutions, Inc. Against Zoll Data Systems by Plaintiff Adept Computer Solutions, Inc.. (Horowitz, Jay) (Entered: 02/29/2008)
03/28/2008	216	REPORT on the determination of an action mailed to Register of Copyrights. (llk,) (Entered: 03/28/2008)

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